

Plaintiffs argue that Defendants’ representation of Rowland’s relationship with Lernalabs—that Rowland’s interests are derivative of Lernalab’s contractual rights as its founder, owner, and principal—is insufficient to establish privity. (Opp., 9:22-10:2.)

Defendants argue that the relationship as alleged through the Complaint is sufficient. Specifically, Rowland was Lernalabs’ founder, owner, and principal, Rowland’s requested recovery is based on the same corporate transactions, withdrawals, and collection activity as that of Lernalabs’, there is no separate payment, agreement, or injury personal to Rowland alleged in the Complaint, and an owner has no individual standing to recover for an injury to the corporation. (Mem., 9:6-15; Reply, 6:9-13.)

The Court has reviewed the Complaint which alleges that Rowland is “[Lernalab’s] largest shareholder and chief executive officer” (see Compl., ¶ 33) and Rowland’s claimed rights arise entirely through Lernalabs and the same Agreement, to which Rowland is a party as Lernalabs’ Guarantor. The Court finds that the Complaint establishes the requisite privity between Rowland and Lernalabs, in that (1) they share an identity and community of interest with respect to the allegations and relief sought in the Complaint, (2) Lernalabs’ status as a party in the New York action offered Rowland adequate representation of his interests in that suit, and (3) Rowland should reasonably have expected to be bound by the New York Judgment. (*Grande, supra*, 13 Cal.5th at 319.)

Based on the foregoing, the demurrer is SUSTAINED on the ground that the action is barred by claim preclusion under the Full Faith & Credit Clause. Plaintiffs’ request for leave to amend the privity allegations is denied, as it does not appear, nor do Plaintiffs contend, that they can truthfully amend the allegations to remove the requisite privity finding.

****at 9:30 a.m.****

SZS Napa LLC v. Brad Oldenbrook et al

24CV001136

TEAM BUILT CONSTRUCTION, INC.’S MOTION FOR GOOD FAITH SETTLEMENT

TENTATIVE RULING: The motion is GRANTED.

Defendant Team Built Construction, Inc. (Team Built) moves, pursuant to Code of Civil Procedure section 877.6, for an order determining that the settlement agreement between Plaintiff SZS Napa LLC and Team Built is entered into in good faith.

“[T]he intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs’ total recovery and the settlor’s proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or

tortious conduct aimed to injure the interests of nonsettling defendants.” (*Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499.)

However, a party objecting that a settlement lacks good faith has the burden of proving the issue. (Code Civ. Proc. § 877.6.) Therefore, “when no one objects, the barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient.” (*City of Grand Terrace v. Super. Ct.* (1987) 192 Cal.App.3d 1251, 1261.) In such case, the trial court is not required “to consider and weigh the *Tech-Bilt* factors.” (*Ibid.*)

The present motion is unopposed. The Court finds that it sets forth the ground of good faith and is accompanied by declarations sufficient to set forth a brief background of the case. On this basis, the Court finds that the settlement entered into between Plaintiffs and moving Defendant is a settlement in good faith pursuant to Code of Civil Procedure Section 877.6. (*City of Grand Terrace v. Super. Ct., supra*, 192 Cal.App.3d at 1261.)

****at 9:30 a.m.****

San Giorgio Ventures, LLC v. County of Napa

24CV001787

[1] MERITS DETERMINATION HEARING

[2] MOTION FOR JUDGMENT

APPEARANCE REQUIRED. Because of scheduling conflicts the Court will be unable to hear the matter. However, the parties are directed to appear in order to set the matter for continued hearing.

****at 9:30 a.m.****

Caroline Geitner v. Tia Sonesouphab et al

24CV002118

DEFENDANTS ST. JOSEPH HEALTH NORTHERN CALIFORNIA, LLC D/B/A
PROVIDENCE QUEEN OF THE VALLEY MEDICAL CENTER, PROVIDENCE ST.
JOSEPH HEALTH, PROVIDENCE HEALTH & SERVICES, AND TIA SONESOUPHAB’S
MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY
ADJUDICATION

TENTATIVE RULING: The matter is CONTINUED to October 16, 2025, at 9:30 a.m. in Dept. A. Plaintiff Caroline Geitner is granted leave to serve and file, no later than October 2, 2026, another separate statement consistent with the discussion, below.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies